

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 14, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Mr. Cook, item #18(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Cook, item #19(b) was removed from the Consent Agenda. Mr. Esquibel moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 23, 2024. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) of the City of Cheyenne, Wyoming, to create BP Business Park Zone District and making conforming amendments to locations throughout the UDC referencing zone districts; and amending the UDC to correct references associated with the SS Support Services District. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#4590)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne adding the Urban Use Overlay District to land located north of East 21st Street and east of and adjacent to Warren Avenue – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Authorizing the Contractor Licensing Board to license and otherwise regulate portable fire extinguisher, hose station equipment and hood system cleaning and maintenance professionals, making conforming amendments, and repealing obsolete provisions of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Dr. Aldrich)

RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S §§ 16-4-112 & 16-4-113. Mr. Johnson declared a conflict of interest and vacated council chambers. Reporting for Finance Committee, Dr. Aldrich moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in council chambers. (#6428)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2025 Budget of the City of Cheyenne according to the provisions of W.S §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6429)

[CA] RESOLUTION – Expressing the support of the Governing Body for the City Engineer to execute certain temporary construction easements on behalf of the City of Cheyenne associated with the Storey Boulevard and Summit Drive Extension Project and the East Dell Range Construction Project. Motion (per Consent Agenda) carried. (#6430)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for VOANR Cheyenne East, City of Cheyenne, Laramie County, Wyoming (located between Maxwell Avenue, Seymour Avenue, East 26th Street and East 25th Street) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive, and south of Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Expressing the support of the Governing Body for acceptance of real property from Stephanie White – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Expressing the determination by the Governing Body of the City of Cheyenne for the repeal of enacting Resolutions and dissolution of specific City Committees, Commissions and Councils due to inactivity – referred to Public Services Committee. (Sponsor – Mr. Johnson)

An appeal of the Planning Commission denial of the Preliminary Plat for Edgar Subdivision, a replat of a portion of Lot 9, Block 4, View Point North, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located at 5192 Panorama Drive) (Appeal by applicant pursuant to UDC 2.1.2.c.6.b). Mr. Roybal moved to overturn the Planning Commission’s decision to deny the preliminary plat and to include the exception to block size, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

Memorandum of Understanding between the City of Cheyenne and the Downtown Development Authority to coordinate repair of sidewalks identified as trip hazards (2021 Specific Purpose Option Tax Fund). Dr. Aldrich moved to approve in an amount not to exceed \$100,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. (#8065)

Development Agreement between the City of Cheyenne, South Cheyenne Water and Sewer District, Cheyenne Fox Farm Village LLC and Cheyenne Fox Farm LLC, for sanitary sewer services. Mr. Roybal advised the item was reviewed under other items for the agenda at the October 8, 2024 Public Services Committee, therefore, provisions of Title 2 of City Code had been met. Mr. Roybal moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Jason Stephen, Gateway Construction. Comment was made by the following member of the governing body: Dr. Rinne. (#8066)

Memorandum of Understanding between the City of Cheyenne and Habitat for Humanity of Laramie County, Inc. for management of grant funds for the Pronghorn Crossing affordable housing project. Mr. Roybal advised the item was reviewed under other items for the agenda at the October 8, 2024 Public Services Committee, therefore, provisions of Title 2 of City Code had been met. Mr. Roybal moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County. (#8067)

[CA] Agreement between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division to provide transportation support services to persons 60 years or older under the Title III-B Program Grant for FY 2025 (Title III-B Division of Aging Grant) – referred to Finance Committee.

[CA] Urban Renewal Development Agreement to award Tax Increment Financing (TIF) for a development in the West Downtown Plan and Project urban renewal area – referred to Public Services Committee.

[CA] Urban Renewal Development Agreement to award Tax Increment Financing (TIF) for a development in the Jolly Rogers Plan and Project urban renewal area – referred to Public Services Committee.

[CA] Contract Modification #1 to Contract #7829 between the City of Cheyenne and GBP, LLC to extend the lease agreement for up to an additional 12 months for the property located at 6725 Faith Drive. Motion (per Consent Agenda) carried (in an amount not to exceed \$16,100.00 per month). (#7829)

Contract Modification #1 to Contract #7989 between the City of Cheyenne and William H. Smith and Associates for design services addressing one additional alleyway for the Cheyenne Three Alleyway Project (2021 Specific Purpose Option Tax Fund). Dr. Aldrich moved to approve in an amount not to exceed \$39,639.67, seconded by Mr. White. Motion carried. Voting “yes” –

all members of the governing body with exception of Mr. Cook voting “no”. Comment was made by the following member of the governing body: Mr. Laybourn. (#7989)

[CA] Consideration of Bid #E-11-24 for two (2) trucks for the City of Cheyenne, Weed & Pest Division (Weed & Pest Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$86,514.00).

[CA] Consideration of Bid #E-3-25 for four (4) trucks (mid-size, regular cab, crew cab) for the City of Cheyenne, Cheyenne Fire Rescue Department (2019-2022 & 2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$324,622.00).

[CA] Consideration of Bid #E-2-25 for ten (10) new four-door 2024/2025 Model Utility Police Interceptors for the City of Cheyenne, Cheyenne Police Department (2019-2022 & 2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$703,288.39).

Consideration of Bid #S-5-25 for an Agreement between the City of Cheyenne and S & S Builders, LLC for the Pronghorn Crossing Site Infrastructure Project (American Rescue Plan Federal Recovery Funds & other funding to be determined). Dr. Aldrich moved to accept the bid in an amount not to exceed \$2,039,808.00, with the funding not covered by ARPA funds coming from the 2021 6th Penny Large Project Land Fund, seconded by Mr. White. Dr. Aldrich moved to amend funding not covered by ARPA funds be funded by Habitat for Humanity of Laramie County, Inc., seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. Public comment was made by: Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson. (#8068)

[CA] Consideration of Bid #S-6-25 for an Agreement the City of Cheyenne and Pine Bluffs Gravel & Excavating, Inc. for the Childs Draw South Tributary Drainage Enchantments Project (General Fund, General Fund Reserves) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

An announcement was made that a Calcutta benefitting Make-A-Wish Wyoming will be held on November 8 – November 9, 2024 at Red Lion, 204 W. Fox Farm Rd., Cheyenne, WY. (10% of proceeds go to charity)

Public comment was made by the following under Other Business: Else Arntzen, owner, Outcast Vintage.

The following members of the governing body made comments under Other Business: Mr. Cook, Mr. Laybourn, Dr. Aldrich and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:34 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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